

ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (C.C.P., § 3294(b).) Officers, directors and managing agents are the employees of the corporation who exercise substantial discretionary authority over decisions that ultimately determine corporate policy; the acts of an ordinary supervisory level employee do not subject the corporation to punitive damages. (*White v. Ultamar* (1999) 21 Cal.4th 563, 573.)

Thus, when the defendant is a corporation, an award of punitive damages against that corporation must rest on the malice of the corporation’s employees. (*Wilson v. Southern California Edison Co.* (2015) 234 Cal.App.4th 123, 164.) A plaintiff must plead that the wrongful acts of employees of the defendant corporation were done with the knowledge or under the express direction or ratification of an officer, director or managing agent. (*Scannell v. County of Riverside* (1984) 152 Cal.App.3d 596, 614.)

Defendant argues that Plaintiff fails to allege a claim against them as corporate employers because the Complaint does not contain “any allegation an officer, director, or managing agent directly committed, or authorized or ratified the act, condition, or omission that supports plaintiff’s punitive damages request.” (Motion, p. 5.) Although the Complaint alleges that “at all times mentioned herein, each of the Defendants was the agent, servant or employee of the other Defendants, and at all times mentioned herein acted within the scope of such agency” (Complaint, ¶ 4), there are no allegations of authorization or ratification. Thus, the Court **GRANTS** the motion to strike **punitive damages** from the Complaint, with 30 days leave to amend.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2602920	DREAD vs WEIDNER PROPERTY MANAGEMENT LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (C.C.P. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.)

If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A complaint, with certain exceptions, need only contain a “statement of the facts constituting the cause of action, in ordinary and concise language” (C.C.P. § 425.10(a)(1)) and will be upheld “so long as

the pleading gives notice of the issues sufficient to enable preparation of a defense.” (*Okun v. Superior Court* (1981) 29 Cal.3d 442, 458.)

Defendants demur to Plaintiff’s causes of action for breach of contract and statutory violations, specifically the 1st cause of action for breach of implied warranty of habitability, 4th cause of action for breach of contract; 5th cause of action for breach of the covenant of quiet enjoyment, 7th cause of action for violation of Business & Professions Code § 17200, 10th cause of action for fraudulent misrepresentation, and 14th cause of action for violation of Civil Code § 1940.2. Defendant argues that Plaintiff fails to allege sufficient facts to support her claims with requisite particularity.

Indeed, “[f]acts alleging a breach, like all essential elements of a breach of contract cause of action, must be pleaded with specificity.” (*Levy v. State Farm Mutual Automobile Ins. Co.* (2007) 150 Cal.App.4th 1, 5.) Further, statutory causes of action must be alleged with particularity. (*Gates v. Superior Court* (1995) 32 Cal.App.4th 481, 493-494.)

However, Defendant’s demurrer is premised on the sole argument that Plaintiff fails to allege sufficient facts to support her claims of breach of contract and statutory violations with requisite particularity because she reincorporates each preceding allegation by reference. (Demurrer, p. 3.) However, in evaluating a demurrer, the Court gives the pleading a reasonable interpretation by reading the Complaint as a whole and all of its parts in their context. (*Moore, supra*, 51 Cal.3d at 125.) Accordingly, Plaintiff’s incorporation of prior allegations does not, by itself, fail to meet the particularity requirement.

Though Defendants cite to *Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645 for the proposition that the “particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the representations were tendered,” this definition of particularity only applies to the heightened pleading standard for claims of fraud. (See *ibid.*) As such, Plaintiff is not held to the heightened *Lazar* standards of particularity in alleging her 1st, 4th, 5th, 7th, and 14th causes of action for breach of contract and statutory violations, as none of them are based on fraud. Defendants fail to set forth any further argument as to how Plaintiff has failed to allege sufficient facts to support the causes of action at issue. An undeveloped argument is a forfeited one. (*Meridian Financial Services, Inc. v. Phan* (2021) 67 Cal.App.5th 657, 701, fn. 15 [failure to develop an argument forfeits that point].) Accordingly, the Court **OVERRULES** the demurrer as to the **1st, 4th, 5th, 7th, and 14th causes of action**.

Plaintiff’s 10th cause of action for fraudulent misrepresentation is held to the heightened pleading standard for fraud-based claims. Under California law, “[t]he elements of fraud are: (1) a misrepresentation (false representation, concealment, or nondisclosure); (2) knowledge of falsity (or scienter); (3) intent to defraud, *i.e.*, to induce reliance; (4) justifiable reliance; and (5) resulting damage.” (*Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal. 4th 979, 990 [citing *Lazar, supra*, 12 Cal. 4th at 638].) Every element of a cause of action for fraud and misrepresentation must be pled factually and specifically, and the policy of liberal pleading does not apply. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 47; *Charnay v. Cobert* (2006) 145 Cal.App.4th

170, 185, fn. 14.) “This particularity requirement necessitates pleading *facts* which ‘show how, when, where, to whom, and by what means the representations were tendered.’ [Citation.]” (*Lazar, supra*, 12 Cal. 4th at 645 [original emphasis].) Here, the 10th cause of action states that Defendant falsely misrepresented to Plaintiff that the Property was safe for human habitation to induce Plaintiff to pay more rent, and that Plaintiff justifiably relied on the misrepresentations, resulting in damage. (Complaint, ¶ 66-69.) However, the Complaint’s factual allegations do not identify “how, when, where, to whom, and by what means” the representations were made. Rather, the Complaint only alleges that Defendant misrepresented that it was installing new carpeting in the Property before Plaintiff moved in. (Complaint, ¶ 7.) Accordingly, the Court **SUSTAINS** the demurrer to the **10th cause of action for fraudulent misrepresentation with 30 days leave to amend**.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2603171	BARBA vs TESLA, INC.	MOTION TO COMPEL

Tentative Ruling:

This is a lemon law action. On May 26, 2026, Plaintiff Alonso Barba (“Plaintiff”) filed a Complaint against Defendant Tesla, Inc. (“Defendant”) asserting causes of action for (1) Breach of Express Warranty, and (2) Breach of Implied Warranty, arising out of Defendant’s alleged failure to repair the 2026 Tesla Model Y (the “Vehicle”) purchased by Plaintiff through an online order.

Defendant now moves to compel arbitration and stay this action, arguing that when Plaintiff ordered the Vehicle, he agreed to be bound by the terms of the Motor Vehicle Order Agreement (“Order Agreement”), which contains a valid arbitration provision that covers Plaintiff’s claims.

In opposition, Plaintiff argues that Defendant fails to establish that he received reasonably conspicuous notice of the Order Agreement and assented to its terms. He also argues that the agreement is procedurally unconscionable because it is a standardized, non-negotiable agreement, and the arbitration agreement was not presented separately, but within the Order Agreement. Finally, he argues that the agreement is substantively unconscionable because it is one-sided, in that only Plaintiff is required to give pre-arbitration notice.

In reply, Defendant argues that it established the existence of an arbitration agreement, and Plaintiff fails to meet his burden of establishing its falsity. It also argues that the agreement is not procedurally unconscionable because it has an opt-out provision, and it is not substantively unconscionable.

Analysis

I. Request for Judicial Notice